

The Court also notes that on July 28, 2026 at the same time Plaintiff filed his untimely Opposition, he also filed a Motion to Strike Defendant Sheila Craft's Jury Demand with a hearing set for August 5, 2028, 8 days later. *Code of Civil Procedure* §1005(b) requires no less than 16 Court days' notice. So, even if the Motion were served the day it was filed, which is just an assumption given that there is no proof of service, notice is wholly insufficient. The Motion is denied.

7. 25CV03849 WILSON, MACY v. CRANDALL, JASON OWENS ET AL

EVENT: Motion for Order to Bifurcate Plaintiff's Claims Against North State Water Testing/Pump, LLC from Plaintiff's Other Claims

Defendant North State Water Testing/Pump, LLC's ("Defendant" herein) Request for Judicial Notice is granted. However, while these filings will be considered for the limited fact that each party made the representations reflected in its respective filings, the Court agrees with the Plaintiff Macy Wilson ("Plaintiff" herein) that they do not establish the truth of underlying factual assertions regarding the transaction, the alleged scope of any defendant's work, the relationship among the claims, causation, damages, or whether separate trials would promote convenience, avoid prejudice, or further expedition and economy under *Code of Civil Procedure* §§598 and 1048(b).

Plaintiff's Evidentiary Objections are overruled.

The Court finds that based upon the allegations in the First Amended Complaint, bifurcation would not aid or result in the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation (*Code of Civil Procedure* §598), nor the furtherance of convenience or to avoid prejudice, or expedition and economy (*Code of Civil Procedure* §1048(b)). Thus, bifurcation is not warranted here and the Motion for Order to Bifurcate Plaintiff's Claims Against North State Water Testing/Pump, LLC from Plaintiff's Other Claims is denied. Counsel for the Plaintiff shall prepare and submit a form of order consistent with this ruling within two weeks.

8. 25CV04232 CTL FORESTRY MANAGEMENT, INC v. FUGUE LAUMAN LLC ET AL

EVENT: Cross-Defendant Ceres Environmental Services, Inc. and David Anders McIntyre's Demurrer to Cross-Complainant Emshire LLC's Cross-Complaint

As to the statute of limitations, the Court finds that the running of the statute of limitations does not appear "clearly and affirmatively" on the face of the Cross-Complaint and Cross-Complainant Emshire LLC ("Emshire" herein) has sufficiently alleged facts to support at least one doctrine (delayed discovery) that would toll the statute of limitations. See Cross-Complaint at Paragraphs 3, 4, 9, 11, 50-53, 55-57. The Demurrer is overruled on that basis.

To invoke the alter ego doctrine, Emshire must allege both: (1) a "sufficient unity of interest and ownership between the corporation and the individual or organization